TENTATIVE RULINGS

DEPARTMENT C33

Judge Sandy N. Leal

May 28, 2026 at 10:00 AM

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative rulings: The Court endeavors to post tentative rulings on the Court's website in the morning, prior to the hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the Department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5233. Please do not call the Department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.*, 205 Cal.App.4th 436, 442, fn. 1 (2012.))

Appearances: Department C33 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C33 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California.

All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time. All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at https://www.occourts.org/media-relations/civil.html before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at https://www.occourts.org/media-relations/aci.html. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at https://www.occourts.org/media-relations.aci.html. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this Department by either coming to the Department at the designated hearing time or contacting the Courtroom Clerk at (657) 622-5233 to obtain login information. For remote appearances by the media or public, please contact the Courtroom Clerk 24 hours in advance so as not to interrupt the hearings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
2	***25-01480099*** ***Doe vs. County of Orange***	**1) Demurrer to Complaint** **2) Motion to Strike Portions Of Complaint** Defendant County of Orange's Demurrer to the Complaint is SUSTAINED without leave to amend. The Motion to Strike is DENIED as moot. As an initial matter, Plaintiff raises several procedural arguments. Plaintiff first argues Defendant improperly attacks the entire complaint because not every cause of action is alleged against Defendant. This contention lacks merit. Defendant attacks the entire complaint only to the extent that any causes of action are alleged against it. Plaintiff next argues that while the Notice indicates Defendant demurs to the 4th cause of action for violation of the Bane Act, the memorandum fails to support that challenge. The Court disagrees. Defendant's Notice states that Defendant demurs this the Bane Act claim because it "is barred because public entities are not liable for an injury to any prisoner. (Gov. Gode, § 844.6(b).)" In turn, Defendant's memorandum properly supports this challenge with extensive argument and legal authority concerning Government Code section 844.6. (See Dem. pp. 5:13-6:18.) Plaintiff correctly argues Defendant's challenge to the 7th and 8th causes of action for negligent hiring, supervision and training pursuant to Government Code section 820.2 was not noticed and therefore should be disregarded. Defendant's notice attacks these claims solely under Government Code section 844.6, subdivision (b). The Court notes Defendant's demurrer challenges Plaintiff's request for punitive damages. However, a demurrer is not the proper procedure to attack an improper claim for punitive damages or other remedy demanded in the complaint. (*Venice Town Council, Inc. v. City of Los Angeles* (1996) 47 Cal.App.4th 1547, 1561-1562.) **Demur to Entire Complaint:** Defendant demurs to each cause of action alleged against it, i.e. the 3rd – 8th cause of action on three grounds. 1. <u>Immunity pursuant to Government Code section 844.6, subdivision (a)(2)</u> Defendant first argues the claims are barred pursuant to Government Code section 844.6, subdivision (a)(2), because public entities are not liable for an injury to any prisoner. Government Code section 844.6, subdivision (a)(2) provides: "Notwithstanding any other provision of this part, [with certain

exceptions not applicable here], a public entity is not liable for . . . [a]n injury to any prisoner." Government Code section 844 provides: "As used in this chapter, 'prisoner' includes an inmate of a prison, jail, or penal or correctional facility." (Gov. Code, § 844.) "Section 844, in defining 'prisoner,' uses the word 'includes,' indicating that the term 'prisoner' is to be broadly interpreted." (*Jiminez v. County of Santa Cruz* (1974) 42 Cal.App.3d 407, 409.) "[T]he Legislature intended that the word 'prisoner' included all inmates of any facility in which they were placed by the courts or law." (*Id*., at p. 410.) Therefore, "for purposes of public immunity a juvenile court ward, being an inmate of a correctional facility, is a 'prisoner.'" (*Id*. at 413.)

Here, Plaintiff alleges he was "detained and housed at a juvenile facility owned and/or run by Defendant the County of Orange . . ." (Compl., ¶ 2.) Plaintiff also alleges Los Pinos, where the sexual abuse occurred, was a "youth correctional facility" where he was court-ordered to mandatory physical confinement. (Compl., ¶¶ 7, 17, 18, 30.) Plaintiff classifies himself as an inmate in custody. (Complaint, ¶¶ 69a, 69e, 78.)

These allegations establish Plaintiff was a prisoner within the meaning of Government Code section 844 and Defendant is immune from liability for Plaintiff's alleged injuries pursuant to section 844.6.

Plaintiff argues the protection of section 844.6 is narrowly circumscribed and cites *Larson v. City of Oakland* (1971) 17 Cal.App.3d 91 for the proposition that section 844.6 uses the term "prisoner" "in the narrow, technical sense" to describe persons held in penal custody. However, *Larson* is distinguishable because it concerned persons temporarily detained by law officers for the purposes of investigation and the court concluded that "prisoner" as used in section 844.6 did not include such persons. (*Id*. at p. 97.) *Larson* did not concern a ward of the juvenile court. *Jiminez*, on the other hand, did.

Plaintiff also cites Welfare and Institutions Code section 202, subdivision (a), and 851 to argue section 844.6 does not apply because immunity attaches only to injuries sustained by persons confined in penal institutions not to juvenile wards placed in a rehabilitative youth facility.

Plaintiff's argument lacks merit. Plaintiff fails to cite any case that has overruled or contradicted *Jimenez*'s holding. In addition, the plaintiff in *Jimenez*, like Plaintiff here, called attention to Welfare and Institutions Code section 851, which at that time stated: "The Juvenile hall shall not be in, or connected with, any jail or prison, and shall not be deemed to be nor be treated as a penal institution. It shall be conducted in all respects as nearly like a home as possible." (See *Jimenez, supra,* at p. 411, quoting prior version of Welf. & Inst., §851.) The court nevertheless concluded "if a ward is placed there he is 'a prisoner in the sense that he was in custody as the result of a legal process.'" (*Ibid*.)

Similarly, in *Patricia J. v Rio Linda Union School District* (1976) 61 Cal.App.3d 278, the court held that "[a] foster care agency in which restraints on individual freedoms are exerted would properly be categorized as an institution whose inmates are considered prisoners, as would a juvenile hall." (*Id*. at 287.) The court acknowledged Welfare and Institutions Code section 851 states a juvenile hall "should not be treated as a penal institution" but held, "[n]evertheless, if a ward is placed there, he is a prisoner in the sense that he was in custody as the result of a legal process . . . Our definition of a prisoner applies equally to wards of the juvenile court as well as to adults." (*Ibid*.)

The fact that Welfare and Institution Code section 851 was amended in 1998 does not affect the holdings in after *Jimenz* and *Patricia J.* because the statute's language prior to the 1998 amendment is substantially the same.

Importantly, the second sentence of the statute before and after the 1998 amendment required a juvenile hall to be conducted like a home/homelike environment.

Plaintiff also argues 844.6 does not apply because Government Code section 815.2, subdivision (a) imposes liability on Defendant through vicarious liability for the acts and omissions of its employees. However, that argument does not apply when dealing with Government Code section 844.6. "Although a public entity may be vicariously liable for the acts and omissions of its employees (Gov. Code § 815.2), that rule does *not* apply in the case of injuries to prisoners." (*Lawson v. Superior Court* (2010) 180 Cal.App.4th 1372, 1383 [emphasis in original].)

Thus, applies and Plaintiff's claims against Defendant are barred pursuant to section 844.6, subdivision (a).

2. Code of Civil Procedure sections 340.1 and 340.11

Defendant next argues the claims fail because they are based on vicarious liability and the statute of limitations for claims based solely on vicarious liability have not been revived pursuant to Code of Civil Procedure sections 340.1 and 340.11.

Code of Civil Procedure sections 340.1 and 340.11 allow for actions against entities that owed a duty to the plaintiff if a wrongful or negligent act by that entity was a legal cause of the childhood sexual assault that resulted in injury. (Civ. Code §§ 340.1(a)(2), 340.11(a)(1)B).) The plain language in section 340.1 and 340.11 imposes liability on a person or entity based on the conduct of that person or entity, not through vicarious liability. (Civ. Code §§ 340.1, 340.11.) By its express terms, Code of Civil Procedure section 340.1 does not revive claims against entities for vicarious liability of their employees. (See *Debbie Reynolds Prof'l Rehearsal Studios v. Super Ct.* (1994) 25 Cal.App.4th 222, 226-29.)

Here, Plaintiff alleges the sexual assault started in 2001 when he was 16 and lasted until 2002. (Compl., ¶ 30(a)(i).) All causes of action against Defendant fail because Defendant's liability is predicated on theories of vicarious liability, which have not been revived. Thus, Plaintiff's claims have expired.

While Plaintiff argues Defendant's reading of Code of Civil Procedure sections 340.1 and 340.11 is "legally unsound," Plaintiff has not cited any case law supporting this assertion.

3. <u>Course and Scope of Employment</u>

Lastly, Defendant argues it cannot be held liable for defendant Jane Roe's alleged sexual abuse because such conduct was outside the scope of her employment since Jane Roe was hired as a tutor/teacher and her scope of employment would be to instruct groups of students following a predetermined curriculum and learning objectives, to develop lesson plans, etc.

Defendant is correct. A public entity is only liable for any injury caused by an act or omission of its employee falling within the scope of his employment if the act or omission would have given rise to a cause of action against that employee. (Gov. Code § 815.2(a) and (b).) "Whether a tort was committed within the scope of employment is ordinarily a question of fact; it becomes a question of law, however, where the undisputed facts would not support an inference that the employee was acting within the scope of his employment. (*John R. v. Oakland Unified School Dist. (John R.)* (1989) 48 Cal.3d 438, 447.)

The California Supreme Court has rejected an attempt to hold a school district vicariously liable under a respondeat superior theory for the sexual molestation of student by a teacher. (*John R. v. Oakland Unified School Dist.* (1989) 48 Cal.3d 438, 447–452.) In *John R.* the court stated an employer is not liable if the employee substantially departs from his duties for purely personal reasons. (*Id*. at 447.)

Here, on each of the three occasions Plaintiff alleges sexual assault occurred was outside of school hours, outside the classroom, and outside of a scheduled session. (Complaint, ¶¶ 30.) Further, Plaintiff specifically alleges that Jane Roe's conduct was "for her own sexual gratification." (Complaint, ¶¶ 31, 32.) These facts support an inference that Jane Roe acted outside the scope of her employment. Plaintiff's opposition fails to point to any facts alleged in the complaint that support an inference to the contrary.

The claims against Defendant for the following additional reasons:

		6th Cause of Action – Negligence Defendant argues the Negligence claim fails because Plaintiff has not pled a statute that would give rise to liability. "In California, all government tort liability must be based on statute." (*Becerra v. County of Santa Cruz* (1998) 68 Cal.App.4th 1450, 1457, citing Gov. Code, § 815.) Government Code section 815, subdivision (a), provides: "Except as otherwise provided by statute: [¶] (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." "[T]his section abolished all common law or judicially declared forms of liability for public entities, except for such liability as may be required by the federal or state Constitution. Thus, in the absence of some constitutional requirement, public entities may be liable *only* if a statute declares them to be liable." (*Becerra, supra,* at p. 1457; quoting *Harshbarger v. City of Colton* (1988) 197 Cal.App.3d 1335 [cleaned up] [emphasis in original].) Here, Plaintiff's negligence claim fails to allege a statute upon which it is based. Plaintiff's opposition is silent as to this argument. **7th and 8th Causes of Action – Negligent Hiring and Supervision & Negligent Training** Defendant argues it cannot be held directly liable for negligent hiring, supervision and training because Plaintiff cannot point to any specific statute imposing a duty of care on Defendant. Defendant is correct to the extent that the complaint fails to allege a statutory basis for the 7th and 8th causes of action. Defendant also argues Plaintiff has not alleged any facts that would give rise to negligent hiring, supervision and training causes of action. Defendant is correct. The complaint does not assert any facts that would give rise to negligent hiring and supervision cause of action. There are no asserted facts to demonstrate that Defendant knew or should have known Jane Roe would engage in sexual interactions with anyone. For example, the complaint does not allege Plaintiff disclosed the abuse to anyone, that anyone else reported witnessing Jane Roe's inappropriate conduct, that Jane Roe previously acted inappropriately with other students, or that Jane Roe had prior convictions or charges for sexual acts with a minor. Based on the foregoing, the Defendant's demurrer to each cause of action alleged against it is SUSTAINED. Because the claims against Defendant fail as a matter of law and Plaintiff has made no showing as to how he can amend to cure these defects, leave to amend is DENIED.

3	***25-01477200*** ***Pesner vs. Redhead***	**Motion to Consolidate** Plaintiff Gary Pesner's motion to consolidate this action with *Adam Redhead v. Gary Pesner*, OCSC Case No. 30-2025-01477388 for all purposes is CONTINUED to _______[30 days from 5/28/26]. On 2/26/26, the Court continued the hearing on the Motion to allow Plaintiff to comply with California Rules of Court, Rule 3.350(a)(2)(B). In an attempt to comply with Rule 3.350(a)(2)(B), Plaintiff has successfully served Restoration Heroes SPV, LLC and Restoration Heroes, Inc. but has been unsuccessful in serving Karel Taska. (Gonchegulian Decl., ¶ 4.) Plaintiff requests a 30-day continuance to effectuate service on Karel Taska which is granted. Plaintiff to give notice.
5	**25-01504437** **Brad Dean Sanders as Trustee of the Powell Family Trust vs. Alexander B. Sanders as Personal Representative of Estate of James Baron Sanders**	**Demurrer to Complaint** Defendant Alexander B. Sanders, as personal representative of Estate of James B. Sanders' demurrer to plaintiff Brad Dean Sanders, as trustee of The Powell Family Trust's complaint is OVERRULED in part and SUSTAINED in part with 20 days leave to amend. **Defendant's request for judicial notice** In support of its demurrer, Defendant requests judicial notice of the following documents: - Exhibit A - Petition for Instructions filed with the Contra Costa Superior Court on May 17, 2024, Case No. 24-00848. - Exhibit B - Brad Dean Sander's Creditor's Claim filed with the Orange County Superior Court on Feb. 4, 2025, Case No. 30-2024-01402031-PR-LA-CMC. - Exhibit C - Herbert Rothman's Creditor's Claim a filed with the Orange County Superior Court on Sep. 5, 2024, Case No. 30-2024-01402031-PR-LA-CMC. Judicial notice may be taken of court records. (Cal. Evid. Code § 452, subd. (d).) The Court GRANTS Defendant's request for judicial notice. **Whether Plaintiff's claims are time-barred** "Upon a person's death, Code of Civil Procedure section 366.2 'provides for an outside time limit of one year for filing any type of claim against a decedent.'" (*Estate of Holdaway* (2019) 40 Cal.App.5th 1049, 1053 [citation omitted].) Specifically, section 366.2, subdivision (a) provides: > If a person against whom an action may be brought on a liability of the person, whether arising in contract, tort, or otherwise, and whether accrued or not accrued, dies before

		the expiration of the applicable limitations period, and the cause of action survives, an action may be commenced within one year after the date of death, and the limitations period that would have been applicable does not apply. "The one-year limitations period is tolled by, among other things, the timely filing of a creditor's claim." (*Estate of Holdaway,* 40 Cal.App.5th at pp. 1053-1054 [citing Code Civ. Proc., § 366.2, subd. (b)(2); Prob. Code, § 9100].) A creditor then has 90 days to bring suit after the rejection of her claim. (Prob. Code, § 9353.) Plaintiff alleges the money at issue was transferred from Powell (who formed the Powell Family Trust) and her husband to decedent, James Baron Sanders, from 2/24/21 and 12/21/23. (Compl. ¶¶ 10, 13.) Plaintiff alleges the decedent passed away on 2/28/24, and Plaintiff filed his creditor's claim 2/4/25. (Compl. ¶¶ 15, 17.) Defendant does not dispute the timeliness of the creditor's claim. Thus, pursuant to Probate Code section 9352, Plaintiff's timely filing of her claim tolled the statute of limitations "until allowance, approval, or rejection." (Prob. Code, § 9352, subd. (a).) Plaintiff alleges the claim was rejected on 5/29/25. (Compl. ¶ 18.) Plaintiff then brought this action within 90 days, on 8/18/25. Thus, Plaintiff's claims are timely. **First cause of action for common count** "A common count is not a specific cause of action . . . ; rather, it is a simplified form of pleading normally used to aver the existence of various forms of monetary indebtedness . . . ." (*Professional Collection Consultants v. Lujan* (2018) 23 Cal.App.4th 685, 690 [citation omitted].) "In California, it has long been settled the allegation of claims using common counts is good against special or general demurrers. [Citation.] "The only essential allegations of a common count are '(1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment.'" (*Farmers Ins. Exchange v. Zerin* (1997) 53 Cal.App.4th 445, 460 [citation omitted].) Plaintiff alleges: - Defendant is indebted to Plaintiff in the sum certain of $190,000.00. (Compl. ¶ 20.) - The consideration for the debt is the $190,000.00 that was paid by the Powell Family Trust to the Decedent at the Decedent's insistence. (Compl. ¶ 21.) As Plaintiff alleges the consideration for Defendant's debt is the debt itself (paid to decedent), Plaintiff fails to sufficiently allege a claim for common count. The Court SUSTAINS Defendant's demurrer as to the first cause of action with 20 days leave to amend.

Second cause of action for fraud

"The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (*Lazar v. Superior Court* (1996) 12 Cal.4th 631, 638 [citation omitted].)
Fraud must be pleaded with specificity. (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843-844 [citation omitted].

Plaintiff alleges:

- Decedent made oral representations to Powell he needed money to pay for chemotherapy and targeted radiation.
- Decedent's oral representations were false as the cost of Decedent's chemotherapy and targeted radiation were paid by private health insurance, Medicare, and/or other sources, and were made by the Decedent with knowledge of their falsity.
- Decedent intended that Powell rely on the oral representations.
- Powell reasonably relied on the Decedent's oral representations by causing at least $190,000.00 to be transferred from the Powell Family Trust to the Decedent.
- Powell was harmed and Powell's reliance on Decedent's representations was a substantial factor in causing her harm.

(Compl. ¶¶ 24-29.)

These allegations are sufficient at the pleading stage.

The Court OVERRULES Defendant's demurrer as to the second cause of action.

Third cause of action for conversion

The elements of the tort of conversation are (1) the plaintiff's ownership or right to possession of personal property; (2) the defendant's disposition of the property in a matter that is inconsistent with the plaintiff's property rights; and (3) resulting damages. (*Regent Alliance Ltd. v. Rabizadeh* (2014) 231 Cal.App.4th 1177, 1181 [citation omitted].)

Plaintiff alleges:

- The Powell Family Trust had a right to possess $190,000.00 in funds.
- Decedent substantially interfered with the $190,000.00 by taking possession of the $190,000.00.
- Powell did not consent to the Decedent retaining the $190,000.00.
- Powell was harmed.
- Decedent's conduct was a substantial factor in causing Plaintiff's harm.

		(Compl. ¶¶ 31-35.) These allegations are sufficient at the pleading stage. The Court OVERRULES Defendant's demurrer as to the third cause of action. **Fourth cause of action for accounting** An action for an accounting has two elements: (1) "that a relationship exists between the plaintiff and defendant that requires an accounting" and (2) "that some balance is due the plaintiff that can only be ascertained by an accounting." (*Sass v. Cohen* (2020) 10 Cal.5th 861, 869 [citations omitted].) "The action carries with it an inherent limitation; an accounting action 'is not available where the plaintiff alleges the right to recover a sum certain or a sum that can be made certain by calculation.'" (*Ibid*. [citations omitted].) "An action for an accounting has been characterized as 'a means of discovery.' This characterization is consistent with the idea that a plaintiff seeking an accounting cannot 'allege[ ] the right to recover a sum certain' because he or she lacks the information necessary to determine the precise amount that may be due." (*Ibid*.) Defendant contends Plaintiff's claim fails as Plaintiff "has verified under penalty of perjury specific checks and specific sums of money on specific dates." (Reply at 5:27-28.) Plaintiff alleges "Defendant is indebted to Plaintiff in the sum certain of $190,000.00." (Compl. ¶ 20.) Plaintiff also alleges, however, Powell caused "at least $190,000 to be transferred" to Decedent. (Compl., ¶¶ 13, 27.) Plaintiff further alleges "[t]he amount owed by the Estate of James Baron Sanders to Plaintiff is uncertain and cannot be ascertained without an accounting." (Compl. ¶ 38.) "[M]odern rules of pleading generally permit plaintiffs to 'set forth alternative theories in varied and inconsistent counts.'" (*Klein v. Chevron U.S.A., Inc*. (2012) 202 Cal.App.4th 1342, 1388 [citations omitted].) As Plaintiff has also alleged the amount at issue was "at least $190,000," he has sufficiently alleged an alternative theory under a cause of action for accounting. The Court OVERRULES Defendant's demurrer as to the fourth cause of action. **Fifth cause of action for financial elder abuse**

		A financial elder abuse claim lies when a person or entity "[t]akes, secretes, appropriates, obtains, or retains real or personal property of an elder or dependent adult for a wrongful use or with intent to defraud, or both," or assists in such conduct. (*Munoz v. Patel* (2022) 81 Cal.App.5th 761, 782 [citing Welf. & Inst. Code, § 15610.30, subd. (a)(1), (2).]) Plaintiff alleges Powell was an elder at the time she formed the trust. (Compl. ¶ 10.) Plaintiff further alleges the decedent obtained the trust property by orally representing to Powell that he needed money to pay for chemotherapy and targeted radiation, but instead spending it on various luxuries and indulgences for himself and his son. (Compl. ¶¶ 14, 42.) These allegations are sufficient at the pleading stage. The Court OVERRULES Defendant's demurrer as to the fifth cause of action.
6	***25-01471349*** ***Duarte vs. Siegel-Foigelman***	**Motion to Be Relieved as Counsel of Record**
7	***24-01403120*** ***Homman Holding, Inc. vs. Epps***	**Motion to Disqualify Attorney of Record** Plaintiff Homman Holding, Inc.'s Motion to Disqualify Defendants' Counsel of Record is DENIED. Plaintiff moves to disqualify Kutak Rock, LLP as counsel for Defendants in this action. <u>Legal Standard</u> "A court may disqualify an attorney upon '"a showing that disqualification is required under professional standards governing avoidance of conflicts of interest or potential adverse use of confidential information."'" (*Havasu Lakeshore Investments, LLC v. Fleming* (2013) 217 Cal.App.4th 770, 777.) This authority "derives from the power inherent in every court '[t]o control in furtherance of justice, the conduct of its ministerial officers.'" (*People ex rel. Dept. of Corporations v. SpeeDee Oil Change Systems, Inc.* (1999) 20 Cal.4th 1135, 1145, quoting Code Civ. Proc., § 128, subd. (a)(5); see *City and County of San Francisco v. Cobra Solutions, Inc.* (2006) 38 Cal.4th 839, 846; *Beachcomber Management Crystal Cove, LLC v. Superior Court* (2017) 13 Cal.App.5th 1105, 1116.) "Disqualification motions implicate several important interests, among them are the clients' right to counsel of their choice, the attorney's interest in representing a client, the financial burden of replacing a disqualified attorney, and tactical abuse that may underlie the motion." (*Roush v. Seagate Technology, LLC* (2007) 150 Cal.App.4th 210, 218-219.) "Although disqualification necessarily impinges on a litigant's right to counsel of his or her choice, the decision on a disqualification motion 'involves more than just the interests of the parties.' [Citation.] When ruling on a disqualification motion, '[t]he paramount concern must be to

		preserve public trust in the scrupulous administration of justice and the integrity of the bar. The important right to counsel of one's choice must yield to ethical considerations that affect the fundamental principles of our judicial process.'" (*Clark v. Superior Court* (2011) 196 Cal.App.4th 37, 47-48.) "It must be remembered, however, that disqualification is a drastic course of action that should not be taken simply out of hypersensitivity to ethical nuances or the appearance of impropriety." (*Roush*, *supra*, 150 Cal.App.4th at p. 219; see *City of San Diego v. Superior Court* (2018) 30 Cal.App.5th 457, 470 ["We do not disqualify a lawyer from representing a client to punish the lawyer's mistakes or even bad behavior."].) <u>Standing</u> California requires a party bringing a motion to disqualify to have standing. (*Great Lakes Construction, Inc. v. Burman* (2010) 186 Cal.App.4th 1347, 1356.) Standing to bring the motion may be direct standing through a current or past attorney-client relationship or they may establish a "personal stake" in the motion. (*Colyer v. Smith* (C.D.Cal. 1999) 50 F.Supp.2d 966.) A "personal stake" requires "an ethical breach so infects the litigation in which disqualification is sought that it impacts the moving party's interest in a just and lawful determination of her claims, she may have the constitutional standing needed to bring a motion to disqualify based on a third-party conflict of interest or other ethical violation." (*Id*. at 971-972.) Plaintiff has failed to establish standing. Plaintiff only argues it may assert a conflict of interest on AlphaPet, LLC's behalf as the majority member. However, Plaintiff provides no authority which supports its assertion that being the majority member confers standing. Plaintiff even expressly states "Homman's current lawsuit is not a derivative lawsuit, but a direct lawsuit brought by Homman." (TAC, ¶ 83.) Thus, Plaintiff lacks standing to bring a motion to disqualify counsel based on a conflict of interest with AlphaPet. Therefore, the Motion is denied on this ground. <u>Discovery</u> Plaintiff provides no legal authority which allows the court to disqualify counsel for alleged discovery obstruction. Plaintiff vaguely argues "the same conflicted firm will prepare the individual defendants for deposition and trial on subjects that implicate Kutak's own prior representation." Any disputes regarding discovery may be resolved through the discovery statutes which authorize the Court to impose sanctions for misuse of the discovery process. Those sanctions do not include disqualifying counsel. (See Code Civ. Proc., § 2023.010, *et seq*.) Thus, the Motion is denied on this ground. <u>Suspended Attorney</u> Plaintiff provides no legal authority which allows the Court to disqualify a law firm as counsel should one of its members be practicing without an active license. Further, Plaintiff fails to even establish Amir Farahani

		practiced law following his suspension in July 2025. Thus, the Motion is denied on this ground.
8	***21-01185998*** ***Jackson vs. Collectors Universe, Inc.***	**Motion for Attorney Fees** Defendant Collectors Universe Inc., also sued in the name of its division, Professional Sports Authenticator aka PSA's Motion for Attorneys' Fees is GRANTED in the reduced amount of $718,701.75. PSA seeks $1,214,637.00 in attorneys' fees pursuant to Code of Civil Procedure section 1717, which provides: "In any action on a contract, where the contract specifically provides that attorney's fees and costs . . . shall be awarded . . . to the prevailing party, then the party who is determined to be the party prevailing on the contract . . . shall be entitled to reasonable attorney's fees. . . ." "California courts 'liberally construe 'on a contract' to extend to any action '[a]s long as an action 'involves' a contract and one of the parties would be entitled to recover attorney fees under the contract if that party prevails in its lawsuit . . . ." (*Mitchell Land & Improvement Co. v. Ristorante Ferrantelli, Inc.* (2007) 158 Cal.App.4th 479, 486 [citations omitted].) "'As to tort claims, the question of whether to award attorney[ ] fees turns on the language of the contractual attorney[ ] fee provision, i.e., whether the party seeking fees has 'prevailed' within the meaning of the provision and whether the type of claim is within the scope of the provision.'" (*Yoon v. Cam IX Trust* (2021) 60 Cal.App.5th 388, 392 [citation omitted].) "To determine whether an action is on the contract, we look to the complaint and focus on the basis of the cause of action. [Citations.] Any action that is based on a contract is an action on that contract regardless of the relief sought." (*Id.* at pp. 392-393 [citations omitted].) On 11/10/25, the Court granted PSA's Motion for Nonsuit as to Plaintiff's claims for negligence and under the Consumer Legal Remedies Act (Civ. Code §§ 1750 et seq.). (ROA 565.) PSA's request for attorney's fees in the amount of $1,214,637.00 consists of: (1) $999,248.00 (Alston & Bird's work 3/1/25-2/17/26) (2) $198,589.00 (Attlesey Ward's work 2/24/21-2/28/25); and (3) $16,800.00 (Alston & Bird's anticipated work). **Plaintiff's cause of action for negligence** PSA contends Plaintiff's negligence cause of action was "on a contract" as it involved the PSA Terms and Conditions. PSA further contends the action involved PSA's defensive positions to enforce the terms of the

contract, including the damage review process and the damages cap set out in the contract.

Plaintiff contends his negligence claim does not concern any term within PSA's "Terms and Conditions" agreement.
The PSA Terms and Conditions provides, "with respect to any legal action to enforce the terms and conditions of this Agreement or otherwise arising under or with respect to this Agreement," "[e]ach of Customer and PSA agrees that the prevailing party shall be entitled to an award of its reasonable attorney's fees, costs and expenses." (PSA Ex. 22 at p. 3, ¶ 13.)

As the Court stated in granting PSA's motion for nonsuit, Plaintiff testified he entered into an agreement with PSA that contained terms and conditions he accepted and confirmed in responses to discovery he agreed to PSA's terms and conditions in the course of submitting the card at issue for grading. (PSA Ex. 25 at 98:8-14.) The Court noted the terms and conditions expressly covered the duties owed by PSA to Plaintiff in the course of grading his card. (PSA Ex. 25 at 98:14-16.)

The Court finds Plaintiff's negligence was an action "on a contract" as it involved the PSA which provided a prevailing party would be entitled to attorney's fees.

Plaintiff's cause of action under the CLRA

Civil Code section 1780, subdivision (e) provides, in part, "Reasonable attorney's fees may be awarded to a prevailing defendant upon a finding by the court that the plaintiff's prosecution of the action was not in good faith."
Plaintiff contends the one-way fee-shifting statutes of the CLRA prevail over the reciprocal fee-shifting policy of section 1717 such that PSA is not entitled to recover attorney fees.

PSA contends Plaintiff's prosecution of the action was not in good faith and relies on *Reyes v. Beneficial Bank* (2022) 76 Cal.App.5th 596, 620, which stated, "it is not unreasonable to suspect that, had [defendant] been successful in defending against [a CLRA] cause[] of action, it would have been entitled to an award of attorney fees against plaintiffs because it would have vindicated its right to payment under the Contract"

The Court in *Martinez v. SAI Long Beach B, Inc.* (2025) 108 Cal.App.5th 367, 380 held, however, "absent a finding of bad faith prosecution by the trial court, such a defendant also is not entitled to an award of attorney fees for prevailing on a CLRA claim." In doing so, it noted, "To the extent the *Reyes* court suggested that a prevailing defendant is entitled to an award of attorney fees under the CLRA and Song-Beverly Act, any such suggestion is dicta because *Reyes* concerned a prevailing plaintiff. To the extent such reasoning was not dicta, we disagree, as explained above." (*Ibid*. at fn. 14.)

		The Court agrees with *Martinez* that section 1717 does not supersede more specific statutes with one-sided attorney fees provisions, including the CLRA. As such, PSA is entitled to attorney's fees as the prevailing defendant on a CLRA claim only if the Court finds Plaintiff's "prosecution of the action was not in good faith." (Civ. Code, § 1780, subd. (e).) "Courts have uniformly constructed this language as requiring a subjective test." (*Corbett v. Hayward Dodge, Inc.* (2004) 119 Cal.App.4th 915, 924.) The defendant moving for attorney fees under section 1780, subdivision (e) has the burden of proof of showing the action was not in good faith." (*Id*. at p. 926.) PSA contends Plaintiff's CLRA action was in not in good faith as it was added "at the last minute in the Second Amended Complaint" (SAC) (Reply at 4:10), PSA offered to conduct a damage review process which Plaintiff refused, and Plaintiff improperly attempted to remove the card from its case at the eleventh hour. Plaintiff's CLRA cause of action was added to his SAC, which was filed on 4/12/23. Plaintiff subsequently filed a third amended (TAC) complaint on 4/21/25, which included the CLRA claim. Trial commenced on 10/17/25. As such, Plaintiff did not add his CLRA claim "at the last minute," nor do Plaintiff's actions during litigation, including his refusal to resolve the matter via a damage review process necessarily demonstrate the action was not in good faith. The Court finds PSA has not demonstrated Plaintiff's prosecution of his CLRA action was not in good faith and therefore cannot recover its attorney's fees in connection with the CLRA claim. PSA suggests should the Court find it is not entitled to such fees, "the Court should apportion the fees attributable to that claim and discount PSA's requested fees only based on that amount. For example, the Court could deduct the handful of time entries that expressly discuss the CLRA claim (which would amount to a deduction of $32,605 in fees) or deduct 9.1% (i.e., 1/11) of PSA's requested fees given that the CLRA claim was just one of Plaintiff's eleven causes of action (which would amount to a deduction of $110,421.55 in fees)." (Reply 5:27-28 (fn. 3).) Neither method of apportionment is sufficient. Deducting only the "handful" of entries that expressly reference the CLRA claim would necessarily exclude work related to this cause of action where the CLRA is not specifically referenced. Moreover, while PSA contends the CLRA cause of action is one of a total of 11 brought by Plaintiff, a number of Plaintiff's causes of action were removed by the time he filed his SAC on 4/12/23, including his claims for fraud – concealment, fraud – intentional misrepresentation, negligent misrepresentation, false and misleading advertising in violation of Business and Professions Code section 17200, et seq., false

and misleading advertising in violation of Business and Professions Code section 17500, et seq., and breach of fiduciary duty.

Plaintiff's CLRA proceeded to trial on 10/17/25 with only one other cause of action and therefore would have undoubtedly required significant more work than causes of action abandoned two and a half years ago. Thus, deducting only 9.1% (i.e., 1/11) is insufficient as it contemplates fees for work divided evenly among 11 causes of action.

As discussed above, Plaintiff added the CLRA claim to the SAC on 4/12/23 along with causes of action for conversion, trespass to chattel, negligence, and unfair competition (Business & Professions Code § 17200). Plaintiff filed a TAC on 3/18/25 removing the conversion and unfair competition causes of action and ultimately dismissed the trespass to chattel cause of action on 4/22/25. Given the approximately two-year gap between the SAC and TAC, however, it is reasonable that PSA's counsel performed work for the ultimately removed and/or dismissed causes of action within that time.

The Court therefore apportions fees related to the CLRA claim by deducting 1/5 of the fees requested for actual work performed in the amount of $1,197,837 for a reduced total of $958,269.60.

Plaintiff's voluntarily dismissed causes of action

Civil Code section 1717, subdivision (b)(2) provides, "Where an action has been voluntarily dismissed or dismissed pursuant to a settlement of the case, there shall be no prevailing party for purposes of this section."

Plaintiff contends PSA may not recover fees in connection with the nine causes of action Plaintiff voluntarily dismissed prior to trial as PSA was never adjudicated the "prevailing party" on any of the dismissed claims.

PSA contends Plaintiff abandoned only claims and did not voluntarily dismiss his entire action and Plaintiff's abandoned claims were inextricably intertwined with at least the negligence claim on which PSA ultimately prevailed at the trial.

As an initial matter, section 1717 refers only to a voluntary dismissal or dismissal pursuant to settlement. Plaintiff voluntarily dismissed only the causes of action for conversion and unfair competition in the SAC (ROA 325) and the trespass to chattel cause of action in the TAC (ROA 436). The other causes of action were merely not included in subsequently amended complaints. Moreover, these causes of action stem from the common issue of Plaintiff submission of the card at issue in accordance with PSA's terms and conditions and the duties owed by PSA to Plaintiff in the course of grading his card pursuant to the terms and conditions. (See *Carver v. Chevron U.S.A., Inc.* (2002) 97 Cal.App.4th 132, 151-152.)

The Court finds PSA is not precluded from recovering fees in connection with these causes of action.

Hourly rates and challenged hours

PSA seeks to recover $1,214,637.00 in fees based on a total of 2,345 hours worked at rates ranging from $350 to $720 for attorneys and a rate of $180 for paralegals. (Parente Decl., ¶¶ 9, 14, 15; Ward Decl., ¶¶ 7, 12, 13.)

"[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095.) "In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees, the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.'" (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41 [citations omitted)

Hourly rates of $350 and $400 for associates, $400 and $720 for partners (with legal experience ranging from several years to 15 years (Parente Decl., ¶ 10), and $180 for paralegals is reasonable for this type of litigation in the local legal community.

Plaintiff further contends a reduction in fees is warranted due to duplicative billing and clerical work.

<u>Duplicative/excessive billing</u>

Plaintiff seeks a reduction in fees where "two or more partners and associates continually billed for what appears to be the same general event or task on the same day," (Opp. at 7:20-8:2) as set forth in Plaintiff's Appendices A and B.
The fact that separate attorneys who each attended the same meeting also each bill for that time does not render a billing entry duplicative. Nor does the fact that different attorneys may have worked on the same task.

Plaintiff also appears to focus its challenge on fees attributable to work performed during trial in this action. Plaintiff contends, for example, that two partners billed 12 hours each on the first day of trial, with two associates billing 12 hours and 9 hours, respectively, and that four attorneys billed almost 12 hours each on the second day of trial. (Opp. at 8:9-21.) Plaintiff also notes the four-person trial team worked throughout the weekend after trial had adjourned.

PSA contends a busy trial day in a case like the one at issue will reasonably cost around $25,000 and that PSA's counsel was up before sunrise and worked late into the night. (Reply at 10:5-9.)

The Court finds a reduction based on Plaintiff's contention

		billing was excessive for trial is not warranted given the general nature of trial and the amount of preparation it requires as well as the specific circumstances of this case. Plaintiff further contends PSA spent excessive time with witness testimony preparation as well as on the motion for nonsuit. Upon review, it does appear the contested billing appears excessive, including with witness preparation and the fee motion. As such, the Court further reduces by 25% the already reduced fees based on the CLRA claim discussed above to $718,701.75. <ins>Clerical work</ins> Plaintiff also seeks a reduction in fees for work it contends is clerical and therefore noncompensable as set forth in Plaintiff's Appendix C. Calendaring deadlines, preparing proofs of service, and preparing binders for a hearing, and saving documents to the computer, are examples of tasks that have been found to be clerical and therefore noncompensable or compensable at a reduced billing rate. (*Save Our Uniquely Rural Community Environment v. County of San Bernardino* (2015) 235 Cal.App.4th 1179, 1187.) The Court declines to deduct the fees set forth in Plaintiff's Appendix C. <ins>Anticipated fees</ins> Finally, Plaintiff contends the requested fees should exclude fees anticipated for work in connection with PSA's reply to the opposition to the fee motion and possible oral argument in the amount of $16,800 (15 partner hours ($720/hr) and 15 associate hours ($400/hr). A fee award may include compensation for all hours reasonably spent, including those necessary to establish and defend the fee claim. (*Ketchum v. Moses* (24 Cal.4th 1122, 1141.) The Court finds PSA is entitled to fees incurred in connection with its fee claim, including the reply and appearance at a hearing. The Court ORDERS counsel for PSA to submit a declaration setting forth actual hours spent on the reply and hearing. The Court GRANTS Defendant Collectors Universe Inc., also sued in the name of its division, Professional Sports Authenticator aka PSA's Motion for Attorneys' Fees in the reduced amount of $718,701.75.
9	***23-01357510*** ***Lubinski vs. Hartman***	**Motion for Summary Judgment and/or Adjudication** The Motion for Summary Adjudication by Defendants Red Hat, Inc. and Thomas Hartman is GRANTED as to the third, tenth, and eleventh causes of action and DENIED as to the remaining issues.

Defendants' objections (ROA 328) are overruled. Defendants' objections include extensive argument in violation of California Rules of Court, Rule 3.1354(b). Moreover, the objections lack merit.

Legal Standard:

At summary judgment, "A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the Plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Code. Civ. Proc. § 437c(p)(2).)

"The motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law. In determining if the papers show that there is no triable issue as to any material fact, the court shall consider all of the evidence set forth in the papers, except the evidence to which objections have been made and sustained by the court, and all inferences reasonably deducible from the evidence, except summary judgment shall not be granted by the court based on inferences reasonably deducible from the evidence if contradicted by other inferences or evidence that raise a triable issue as to any material fact." (Code Civ. Proc. § 437c(c).)

Here, Defendants move for summary adjudication as to the third, fifth, sixth, seventh, eighth, tenth, and eleventh causes of action and Plaintiff's claim for punitive damages.

Third Cause of Action (Defendant Hartman Only):

Plaintiff alleges he submitted a formal complaint to Red Hat in January 2023 based on Hartman calling Plaintiff "Moldy Lubinski" and "Old Moldy," which Plaintiff found humiliating because he had disclosed to Hartman that he was experiencing health problems caused by mold exposure. (¶ 106.) Plaintiff alleges Defendants took retaliatory action including taking accounts from Plaintiff, raising Plaintiff's sales goals, and delaying Plaintiff's pay before eventually terminating Plaintiff in September 2023. (¶¶ 110-114.)

Defendant Hartman moves for summary adjudication of this claim on the grounds that the FEHA retaliation claim is not viable against an individual Defendant. (Motion, p. 14.) Plaintiff does not oppose the motion on these grounds. (Opp. at 1:15-16.)

Therefore, the motion is granted as to the third cause of action against Defendant Hartman.

Fifth Cause of Action – IIED (All Defendants):

In Plaintiff's cause of action for intentional infliction of emotional distress (IIED), he alleges Defendants intentionally targeted and discriminated against him on the basis of his disability, causing severe emotional distress. (¶¶ 138-144.)

Defendants move for summary adjudication on the grounds that (1) the claim is precluded by workers compensation exclusivity, (2) Defendants' alleged conduct was not intentional, extreme and outrageous, and (3) Plaintiff did not suffer severe emotional distress.

First, Defendant has not shown there is no triable issue as to workers compensation exclusivity.

"Physical and emotional injuries sustained in the course of employment are preempted by the workers' compensation scheme and generally will not support an independent cause of action. Emotional injuries caused by workplace discipline, including termination, fall within this rule." (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 161 [cleaned up]; see Labor Code 3600 et seq.) However, Yau discusses a public policy exception to the preemption rule:

"Yau relies on a series of cases that have found exceptions to this general rule of preemption when the intentional infliction of emotional distress claim is based on conduct that violates a fundamental public policy. Those cases were decided before our Supreme Court's decision in *Miklosy v. Regents of University of California* (2008) 44 Cal.4th 876, 80 Cal.Rptr.3d 690, 188 P.3d 629 (*Miklosy*), which held the exception to workers' compensation preemption for employer conduct that contravenes fundamental public policy is aimed at permitting a *Tameny* action [for wrongful discharge in violation of public policy] to proceed despite the workers' compensation exclusive remedy rule. This exception does not, however, allow a distinct cause of action, not dependent upon the violation of an express statute or violation of fundamental public policy. *Miklosy* held that even severe emotional distress arising from outrageous conduct that occurred at the worksite, in the normal course of the employer-employee relationship is the type of injury that falls within the exclusive province of workers' compensation. An employer's intentional misconduct in connection with actions that are a normal part of the employment relationship resulting in emotional injury is considered to be encompassed within the compensation bargain, even if the misconduct could be characterized as manifestly unfair, outrageous, harassment, or intended to cause emotional disturbance. Accordingly, the trial court did not err by sustaining the demurrer as to this cause of action. (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 161–162 [cleaned up].)

		Here, Plaintiff argues, "the public policies violated by Hartman's offensive slurs and his retaliatory and gender-based reassignment of Plaintiff's territory exempts Plaintiffs IIED claim from worker's compensation: 'some claims, including those based on sexual or racial discrimination or other conduct contrary to fundamental public policy, are not subject to the exclusivity provisions of the workers' compensation law. Thus, such claims may be the subject of both workers' compensation proceedings and civil actions.' *Claxton v. Waters* (2004) 34 Cal.4th 367, 373, as modified (Sept. 15, 2004) (citation omitted). The age, health, and gender-based harassment suffered by Plaintiff all violate public policy and exempt his claims from workers compensation." (Opp. at p. 9.) In reply, Defendants do not address Plaintiff's preemption arguments including his citation to *Claxton*. Plaintiff has adequately demonstrated a triable issue as to whether his claims arise from a violation of the public policy against disability discrimination such that they fall outside the workers compensation exclusivity doctrine. Moreover, Plaintiff has demonstrated triable issues as to whether Defendants' actions were intentional, extreme, and outrageous, and whether he suffered severe emotional distress. Defendants argue the "Moldy" nickname was not extreme and outrageous because Plaintiff testified the nickname was "silly" and he did not promptly tell Hartman to stop or seek HR assistance. (Reply, p. 8.) Plaintiff's declaration is sufficient to create a triable issue as to whether Defendants engaged in intentional, extreme, and outrageous conduct with regard to Hartman's persistent use of the nickname and Red Hat's response, or lack thereof, to Plaintiff's complaints. (Plaintiff Decl., ¶¶ 8-39.) <u>Sixth Cause of Action – Invasion of Privacy (All Defendants):</u> "The elements of a common law invasion of privacy claim are intrusion into a private place, conversation, or matter, in a manner highly offensive to a reasonable person. In determining the existence of offensiveness, one must consider: (1) the degree of intrusion; (2) the context, conduct and circumstances surrounding the intrusion; (3) the intruder's motives and objectives; (4) the setting into which the intrusion occurs; and (5) the expectations of those whose privacy is invaded. Actionable invasions of privacy must be sufficiently serious in their nature, scope, and actual or potential impact to constitute an egregious breach of the social norms underlying the privacy right. Thus, the extent and gravity of the invasion is an indispensable consideration in assessing an alleged invasion of privacy. The impact on the plaintiff's privacy rights must be more than slight or trivial. Whether a legally recognized privacy interest is present in a given case is a question of law to be decided by the court. Whether plaintiff has a reasonable expectation of privacy in the circumstances and whether defendant's conduct

		constitutes a serious invasion of privacy are mixed questions of law and fact. If the undisputed material facts show no reasonable expectation of privacy or an insubstantial impact on privacy interests, the question of invasion may be adjudicated as a matter of law. (*Mezger v. Bick* (2021) 66 Cal.App.5th 76, 86–87 [cleaned up].) Here, Plaintiff alleges Defendants invaded Plaintiff's privacy by disclosing his private medical issues related to mold exposure by calling Plaintiff "Moldy" and similar nicknames in front of coworkers, and Red Hat failed to adequately respond to Plaintiff's complaints about the nickname. (¶¶ 152-163.) Defendants assert (1) Hartman did not disclose private facts because he did not have access to Plaintiff's private health information, and calling Plaintiff "Moldy" did not necessarily disclose Plaintiff's health information, and (2) the alleged private fact was not highly offensive because Plaintiff acknowledged the nickname was merely "weird and silly." To demonstrate a triable issue of fact on this claim, Plaintiff must merely show that, construing the evidence "in the light most favorable" to Plaintiff, "a reasonable jury could find" the nicknames disclosed private health information in an offensive manner. (See *Mackey v. Board of Trustees of California State University* (2019) 31 Cal.App.5th 640, 668; *Light v. Department of Parks & Recreation* (2017) 14 Cal.App.5th 75, 81.) Here, Plaintiff has presented evidence that, in context, the alleged nicknames used by Hartman could have disclosed to Plaintiff's coworkers that he had health problems related to mold and that he reasonably found such disclosure highly offensive. Plaintiff declares, "After Mr. Hartman started using the term 'Moldy', co-workers asked why I was being labeled as 'Moldy' and I felt compelled to explain that it was based at least in part upon my health condition." (¶ 14.) Plaintiff declares he told Hartman about the toxic mold issues he was experiencing and asked Hartman to keep the information confidential. (¶ 6.) Plaintiff had a reasonable expectation of privacy related to health problems disclosed to his supervisor, and he has demonstrated a triable issue as to whether the use of nicknames disclosed such information and whether he found the alleged disclosure highly offensive. (Plaintiff Decl., ¶¶ 6-14.) Therefore, Plaintiff has demonstrated a triable issue of fact as to this claim. <u>Seventh and Eighth Causes of Action – Libel and Slander (All Defendants):</u> "Libel is a form of defamation effected in writing. The elements of a defamation claim are (1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes

		special damage. The defamatory statement must specifically refer to, or be of and concerning, the plaintiff." (*John Doe 2 v. Superior Court* (2016) 1 Cal.App.5th 1300, 1312 [cleaned up].) "Slander is a false and unprivileged publication, orally uttered, and also communications by radio or any mechanical or other means which: 1. Charges any person with crime, or with having been indicted, convicted, or punished for crime; 2. Imputes in him the present existence of an infectious, contagious, or loathsome disease; 3. Tends directly to injure him in respect to his office, profession, trade or business, either by imputing to him general disqualification in those respects which the office or other occupation peculiarly requires, or by imputing something with reference to his office, profession, trade, or business that has a natural tendency to lessen its profits; 4. Imputes to him impotence or a want of chastity; or 5. Which, by natural consequence, causes actual damage." (Civ. Code § 46.) "To state a defamation claim that survives a First Amendment challenge, thus, plaintiff must present evidence of a statement of fact that is provably false. Statements do not imply a provably false factual assertion and thus cannot form the basis of a defamation action if they cannot reasonably be interpreted as stating actual facts about an individual. Thus, rhetorical hyperbole, vigorous epithets, lusty and imaginative expressions of contempt, and language used in a loose, figurative sense have all been accorded constitutional protection. The dispositive question after is whether a reasonable trier of fact could conclude that the published statements imply a provably false factual assertion. To ascertain whether the statements in question are provably false factual assertions, courts consider the totality of the circumstances. Whether challenged statements convey the requisite factual imputation is ordinarily a question of law for the court." (*Nygard, Inc. v. Uusi-Kerttula* (2008) 159 Cal.App.4th 1027, 1048–1049 [cleaned up].) Here, Plaintiff alleges the "Moldy" nickname was false and defamatory because the language falsely conveyed to Plaintiff's coworkers that Plaintiff is "decaying, old, antiquated, dull, not interesting, and/or depressing." (¶¶ 167-169.) Defendants contend (1) "Moldy" was not a "provably false assertion of fact about Plaintiff or even an opinion," (2) Defendants had no intent to defame or cause harm, and (3) Plaintiff suffered no harm from the nickname. (Motion, pp. 21-22.) Defendant also asserts that to the extent the nickname was stating fact, it was "substantially true." In opposition, Plaintiff responds that "Moldy" and "Old Moldy" could reasonably be considered defamatory factual statements because the dictionary definition of "moldy" includes "being old and moldering", "crumbling" "antiquated" and "fusty." (Opp. at 11:13-15.)

		Based on the "totality of the circumstances," Plaintiff has demonstrated that "a reasonable trier of fact could conclude that the published statements imply a provably false factual assertion." (See *Nygard*, *supra*, 159 Cal.App.4th at 1048-1049.) For example, Plaintiff's coworkers could have interpreted the statements to mean that Plaintiff was too old to perform his duties and/or suffered from a medical condition or disability which rendered him unable to perform his duties. Plaintiff has adequately demonstrated a triable issue as to whether he suffered harm, including embarrassment, retaliation, and other employment consequences from Defendants' actions involving the nickname. Therefore, the motion is denied as to this claim. <u>Tenth Cause of Action – Failure to Pay Wages (Defendant Red Hat Only):</u> Plaintiff does not oppose the motion as to his tenth cause of action against Red Hat. (Opp. at 1:15-17.) Therefore, the motion is granted as to the tenth cause of action against Defendant Red Hat. <u>Eleventh Cause of Action – Waiting Time Penalties (Defendant Red Hat Only):</u> Plaintiff does not oppose the motion as to his eleventh cause of action against Red Hat. (Opp. at 1:15-17.) Therefore, the motion is granted as to the eleventh cause of action against Defendant Red Hat. <u>Punitive Damages (All Defendants):</u> Defendants contend there is no evidence they acted with malice, oppression, or fraud and that Red Hat is not liable for punitive damages because Defendant Hartman and Vice President Hernandez were not officers, directors, or managing agents of Red Hat. (See Civ. Code § 3294.) A plaintiff may seek punitive damages only "where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice." (Civ. Code § 3294(a).) "Malice" means "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code § 3294(c)(1).) "Oppression" means "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code § 3294(c)(2).) "Despicable conduct" is conduct that is "so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (*Lackner v. North* (2006) 135 Cal.App.4th 1188, 1210.) "Summary judgment or summary adjudication on the issue of punitive damages is proper only when no reasonable jury could find the plaintiff's evidence to be clear and convincing proof of malice, fraud or oppression." (*Butte Fire Cases* (2018) 24 Cal.App.5th 1150, 1159 [cleaned up].)

		Here, Plaintiff contends there is a triable issue as to whether Hartman's use of the offensive nicknames was "despicable" and whether Hartman was a "managing agent" of Red hat. Plaintiff cites evidence that Hartman, a Senior Sales Manager, was responsible for assigning accounts and in fact Hartman reassigned accounts from Plaintiff to a younger sales rep. (Opp. at p. 14.) Plaintiff also argues that Red Hat's HR manager Katherine Foley was a managing agent who was responsible for enforcing corporate anti-harassment policy. (Id. at p. 15.) Plaintiff has adequately demonstrated a triable issue as to whether Hartman's conduct was despicable and whether Hartman and/or the HR team members who responded to his complaint were managing agents who ratified Hartman's conduct. Therefore, the motion is denied as to this issue.
10	***22-01269208*** ***Moran vs. Torelli Realcorp***	**Demurrer to Complaint** Defendant Michael B. Meyer's Demurrer is CONTINUED to September 3, 2026. "A notice of motion to strike a demurrer, or a portion thereof, shall set the hearing thereon concurrently with the hearing on the demurrer." (Code Civ. Proc., § 435(b)(3).) Defendant filed a Demurrer and Motion to Strike on March 16, 2026. The Motion to Strike is currently set for hearing on September 3, 2026. Thus, the hearing for Defendant's Demurrer is continued to September 3, 2026 to be heard concurrently with the Motion to Strike.
11	***24-01442293*** ***Palacios vs. North Orange County Community College District Foundation***	**Motion to Deem Facts Admitted** **OFF CALENDAR**
12	***21-01218115*** ***Raggins vs. Kia America, Inc.***	**1) Motion for Sanctions** **2) Motion for Terminating Sanctions – OFF CALENDAR**
13	***25-01460291*** ***Uptown Newport Building Owner, LP vs. Saldo***	**Motion to Be Relieved as Counsel of Record** **MOTION WITHDRAWN**